

		Defendant Rich to give notice.
14	Nguyen vs. Mercedes-Benz USA LLC	<u>Motion to Compel Binding Arbitration</u> The court GRANTS Defendant MERCEDES-BENZ USA, LLC’s (“MBUSA”) motion to compel Plaintiff PETER NGUYEN to arbitrate his claims against Defendant Mercedes-Benz and staying this action pending completion of the arbitration. <i>The Arbitration Agreement</i> A party moving to compel arbitration bears an initial burden of producing “prima facie evidence of a written agreement to arbitrate the controversy.” (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165–166.) If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (See <i>Gamboa</i>, 72 Cal.App.5th at 165-166.) Here, Defendant MBUSA meets its initial prima facie burden by submitting the Motor Vehicle Lease Agreement (the “Lease Agreement”) apparently executed by Plaintiff, which contains the following arbitration provision: <i>Any claim or dispute</i>, whether in contract, tort or otherwise (including any dispute over the interpretation, scope or validity of this lease, arbitration section or the arbitrability of any issue), <i>between you and us</i> or any of our employees, agent, successors, assigns, or the vehicle distributor, <i>including Mercedes-Benz USA LLC</i> (each a ‘Third-Party Beneficiary’), <i>which arises out of or relates to</i> a credit application, <i>this lease, or any resulting transaction or relationship arising out of this lease</i> (including any such relationship with third parties who do not sign this contract) <i>shall</i>, at the election of either you, us, or a Third-Party Beneficiary, <i>be resolved by</i> a neutral, <i>binding arbitration and not by a court action.</i>